



CHAPTER xvii

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity known as the Poor's Coal Charity, in the Ancient Parish of Wavendon, in the Counties of Buckingham and Bedford. [14th May 1959.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-eight reported that they had approved and certified a Scheme for the application or management of the Charity known as the Poor's Coal Charity, in the Ancient Parish of Wavendon, in the Counties of Buckingham and Bedford:

And whereas it is expedient that the Scheme as the same is fully set and out and defined in the Schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The said Scheme is hereby confirmed: Provided always Confirmation that nothing in this Act or in the said Scheme shall be held to of Scheme. interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as the Poor's Coal Charity Short title. (Wavendon) Charity Scheme Confirmation Act, 1959.

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF THE
FOLLOWING CHARITY:—

The Charity known as the Poor's Coal Charity, in the Ancient Parish of Wavendon, in the Counties of Buckingham and Bedford, comprised in an agreement dated the 24th April 1809 and the Act, 50 Geo. 3 cap. cxcv (Local and Personal).

1. *Administration of Charity.*—The above-mentioned Charity and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Charity shall be administered and managed subject to and in conformity with the provisions of this Scheme by the body of Trustees hereinafter constituted.

2. *Vesting.*—The rentcharge specified in the schedule hereto is hereby vested in The Official Trustee of Charity Lands for all the estate and interest therein belonging to or held in trust for the Charity.

3. *Investment of cash.*—Sums of cash at any time belonging to the Charity and not needed for immediate working purposes shall be invested if the Charity Commissioners so direct in the name of The Official Trustees of Charitable Funds.

4. *Trustees.*—The body of Trustees shall consist when complete of ten competent persons being—

Four Nominative Trustees and
Six Co-optative Trustees.

5. *Nominative Trustees.*—The Nominative Trustees shall be appointed as follows:—

Two by the Parish Council of Woburn Sands,
One by the Parish Council of Aspley Heath and
One by the Parish Council of Wavendon.

Each appointment shall be made for a term of four years at a meeting convened and held according to the ordinary practice of the appointing body. The chairman of the meeting shall cause the name of each person appointed to be notified forthwith to the Trustees or their clerk. The person appointed may be but need not be a member of the appointing body.

6. *First Nominative Trustees.*—The first Nominative Trustees shall be appointed as soon as possible after the date hereof and their names shall be notified to Charles Kerrison Hargreaves hereinafter named on behalf of the Trustees.

7. *Co-optative Trustees.*—The Co-optative Trustees shall be persons residing or carrying on business in or near the area of the Ancient Parish of Wavendon.

8. *First Co-optative Trustees.*—The following persons shall be the first Co-optative Trustees and subject to the provisions hereinafter contained for determination of trusteeship shall be entitled to hold office for the following periods respectively:—

Sir Frederick Philip Alfred William Wombwell, Baronet, of The Old Rectory, Wavendon, and

Cyril Hutton, of 5 Hardwick Place, Woburn Sands, Company Director, both for five years from the date of this Scheme ;

Ernest Charles Deacon, of The Square, Woburn Sands, Esquire, and Roland Payne, of Araglyn, Wavendon, Joiner, both for four years from the date of this Scheme ;

Lionel Brian Furber, of The Surgery, Medical Practitioner, and Charles Kerrison Hargreaves, of Stokesay Cottage, Esquire, both in Woburn Sands, both for three years from the date of this Scheme.

9. *Future Co-optative Trustees.*—Every future Co-optative Trustee shall be appointed for a term of five years by a resolution of the Trustees to be passed at a special meeting.

10. *Declaration by Trustees.*—No person shall be entitled to act as a Trustee whether on a first or on any subsequent entry into office until after signing in the minute book of the Trustees a declaration of acceptance and of willingness to act in the trusts of this Scheme.

11. *Determination of trusteeship.*—Any Co-optative Trustee who ceases to be qualified as aforesaid and any Trustee who is absent from all meetings of the Trustees during a period of one year or who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Trustees a wish to resign shall cease thereupon to be a Trustee.

12. *Vacancies.*—Upon the occurrence of a vacancy the Trustees shall cause a note thereof to be entered in their minute book at their next meeting and in the case of a vacancy in the office of Nominative Trustee shall cause notice thereof to be given as soon as possible to the proper appointing body. Any competent Trustee may be re-appointed. No vacancy in the office of Co-optative Trustee shall be filled until after the lapse of one calendar month from its occurrence.

MEETINGS AND PROCEEDINGS OF TRUSTEES

13. *Ordinary meetings.*—The Trustees shall hold at least two ordinary meetings in each year.

14. *First meeting.*—The first meeting of the Trustees shall be summoned by the said Charles Kerrison Hargreaves or if he fails for three calendar months after the date of this Scheme to summon a meeting by any two of the Trustees.

15. *Chairman.*—The Trustees at their first ordinary meeting in each year shall elect one of their number to be chairman of their meetings until the commencement of the first ordinary meeting in the following year. The chairman shall always be eligible for re-election. If at any meeting the chairman is not present within ten minutes after the time appointed for holding the same or there is no chairman the Trustees present shall choose one of their number to be chairman of the meeting.

16. *Special meetings.*—A special meeting may be summoned at any time by the chairman or any two Trustees upon four days' notice being given to all the other Trustees of the matters to be discussed. A special meeting may be summoned to take place immediately after an ordinary meeting.

17. *Quorum.*—There shall be a quorum when four Trustees are present at a meeting.

18. *Voting.*—Every matter shall be determined by the majority of votes of the Trustees present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not voted previously on the same question but no Trustee in any other circumstances shall give more than one vote.

19. *Minutes and accounts.*—A minute book and books of account shall be provided and kept by the Trustees. All proper accounts in relation to the Charity shall be made out in each year and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners in compliance with the provisions of the Charitable Trusts Acts.

20. *General power to make regulations.*—Within the limits prescribed by this Scheme the Trustees shall have full power from time to time to make regulations for the management of the Charity and for the conduct of their business including the summoning of meetings, the deposit of money at a proper bank and the custody of documents.

21. *Clerk.*—The Trustees may appoint some fit person to be their clerk and to hold office during their pleasure and may pay to him (not being a Trustee) such reasonable salary as they think fit.

APPLICATION OF INCOME

22. *Application of income.*—The Trustees shall distribute the clear yearly income of the Charity or any coal or wood received by them from the owner for the time being of the land specified in the said schedule under the provisions of the above-mentioned agreement dated the 24th April 1809 as they think fit among needy persons who have resided in the area of the Ancient Parish of Wavendon for not less than one year next preceding the date of the distribution.

GENERAL PROVISIONS

23. *Appropriation of benefits.*—The appropriation of the benefits of the Charity shall be made by the Trustees at meetings of their body and not separately by any individual Trustee or Trustees.

24. *Trustees not to be personally interested.*—No Trustee shall receive remuneration, or be interested in the supply of work or goods, at the cost of the Charity.

25. *Charity not to relieve public funds.*—The funds or income of the Charity shall not be applied in relief of rates, taxes or other public funds.

26. *Alteration of Scheme.*—The Charity Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

27. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

28. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

SCHEDULE

A perpetual yearly rentcharge of £300 charged upon or issuing out of the following land more particularly described in the First and Second Schedules to the above-mentioned Act 50 Geo. 3 cap. CXCV and now in the ownership or occupation of His Grace John Robert Duke of Bedford :

1. Land containing 150 acres or thereabouts situate in the Parish of Wavendon in the County of Buckingham known as the Wandon Poor Fuel Allotment exclusive of two pieces of land containing 2 acres or thereabouts in the midst thereof.
2. Land containing 148 acres 2 roods 32 perches or thereabouts situate in the Parish of Husborne Crawley in the County of Bedford with the farmhouse thereon known as Redfield Farm.

Note: The above-mentioned rentcharge may be paid in coal or wood.

Sealed by Order of the Board this 20th day of June 1958.

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